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Case Number: 25PSCV04316 Hearing Date: July 16, 2026 Dept: 6

CASE

NAME: 1301

East Gladstone Street Investors, LLC v. Debra Metzger

Plaintiff's

Motion Re: Serve the Summons and First Amended Complaint by Service Upon the Secretary of State

TENTATIVE

RULING

The Court DENIES Plaintiff's Motion Re: Serve the Summons and First Amended Complaint by Service Upon the Secretary of State without prejudice.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lending dispute. On December 3, 2025, plaintiff 1301 East Gladstone Street Investors, LLC (Plaintiff) filed this action. On March 26, 2026, Plaintiff filed the operative First Amended Complaint (FAC) against defendants Debra Metzger (Metzger), Pink Sponge (Pink Sponge) (collectively, Defendants), Does 1 through 5, and Roe Corporations 6 through 10, alleging causes of action for breach of guaranty and breach of lease.

On June 8, 2026, Plaintiff moved to serve the summons and FAC on

Pink Sponge by service upon the Secretary of State.

LEGAL

STANDARD

A

summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods:

...

(d)

If authorized by any provision in Section 1701, 1702, 2110, or 2111 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable), as provided by that provision.

(Code Civ.

Proc., § 416.10, subd. (d).)

(a)

If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b), or (c) of Section 416.10 or subdivision (a) of Section 416.20 of the Code of Civil Procedure, the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. Service in this manner is deemed complete on the 10th day after delivery of the process to the Secretary of State.

...

(d)

The court order pursuant to subdivision (a) that service of process be made upon the corporation by delivery to the Secretary of State may be a court order of a court of another state, or of any federal court if the suit, action, or proceeding has been filed in that court.

(Corp. Code,
§ 1702, subds. (a), (d).)

DISCUSSION

Plaintiff seeks to serve the summons and FAC on Pink Sponge by service upon the Secretary of State due to difficulty locating the Pink Sponge's agent for service of process, Jennifer Ahlgrim (Ahlgrim) or its officer Judy Sandoval (Sandoval). Plaintiff contends the public records only list the leased premises address for Ahlgrim, so Plaintiff conducted a skip trace and attempted service at all three resulting addresses, but to no avail. Plaintiff therefore seeks leave to serve Pink Sponge upon the Secretary of State.

The Court finds Plaintiff has not demonstrated sufficient efforts to show that they cannot with reasonable diligence locate Ahlgrim, Sandoval or Pink Sponge by any other authorized method. (Corp. Code, § 1702, subd. (a).) While Plaintiff indicates diligence in attempting to locate and effect service at multiple addresses, Plaintiff provides no evidence of having attempted service by mail with notice and acknowledgment of receipt. (Sayyar Decl., ¶¶ 4-8, Ex. 2; Code Civ Proc., § 415.30.)

Based on the foregoing, the Court DENIES the Motion without prejudice.

CONCLUSION

The Court DENIES Plaintiff's Motion Re: Serve the Summons and First Amended Complaint by Service Upon the Secretary of State without prejudice.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.